

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
Historic Depot Museum

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and TDSi, located at 1610 Pioneer Avenue, Cheyenne, Wyoming 82001 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed in two phases. The Consultant shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project. Anticipated Schedule is as follows: Design Phase; January - June 2024. Bidding/Negotiation Phase; Summer 2024. Construction Phase; Fall 2024 - Spring 2025.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of One Hundred Twenty-Two Thousand Four Hundred Thirty-Three Dollars (\$122,433) as stated in Exhibit A.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties

under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an “occurrence” policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured.

The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to December 31, 2024. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring

experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

25. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, and Exhibit A consisting of fourteen (14) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

TSDi

By: _____

Print Name: _____

Date: _____



Proposal for Professional Design Services for
Cheyenne Depot Museum:
Various Projects
Cheyenne, Wyoming

January 12, 2024

City of Cheyenne
Community Recreation and Events Department
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

ATTN: **Jason Sanchez – Director, Community Recreation & Events**

RE: **REVISED Proposal for Professional Design Services for**
CHEYENNE DEPOT MUSEUM: VARIOUS PROJECTS (Phase 1 & 2)

Jason:

Thank you again for allowing our firm to provide this proposal for Professional Services for the various projects at the Historic Cheyenne Depot. We would be honored to have the chance to work with you once again. If, as you review our proposal, you have any questions, please do not hesitate to contact me. We would be glad to meet to further discuss our approach to the project.

Thank you again,

Will Byers, Associate AIA

Will@tdsi.us

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Phase 1 Design Scope:

- A. Renovate and/or repair the lobby (exterior) historic doors (5 locations total):
- Design Scope to include: Addition of access control (card reader) at Northeast exterior door. Door to be converted to double doors (unequal pair) to allow transport of larger items (chair carts, etc.) through opening. Frames and doors are anticipated to remain, unless determined otherwise. New door hardware shall include hinges, lockset, closer, kickplate, sweep, etc.
 - Professional Services Scope: Architect, Electrical Engineer, Door hardware Consultant.
- B. Patio on Southwest side of building: New concrete surfacing, shade structure (pre-engineered, detached from building), and beautification (planters or similar):
- Design Scope to include: Removal of deteriorated concrete paving between Southwest side of Depot to Union Pacific Railroad (UPRR) Right of Way, subgrade to allow installation of new concrete and brick pavers (similar to North side of Depot), If feasible capture surface drainage in storm sewer (further site exploration required to see if this is possible), removal of existing planter beds adjacent to Depot, New shade structure (pre-engineered) pending cost.
 - Area is $\pm$ 5,400 SF (From existing Transformer/HVAC enclosures adjacent to the parking lot to the West side of the UPRR underground connector only).
 - Does not include any work East of UPRR underground connector.
 - Anticipated Professional Services Scope: Architect, Civil Engineer, Electrical Engineer.
 - Services include survey of area of work by Surveyor.
- C. Design for first floor receptacles at exterior of building. Locations are to be determined based upon feasibility of installation due to existing historic structure.
- Design scope to include: Location of receptacles based upon feasibility of installation, and availability of existing electrical panel capacity. Total number of receptacles is anticipated to be a maximum of 10 locations.
 - Anticipated Professional Services Scope: Architect, Electrical Engineer.

Phase 1 anticipated Schedule :

- Design: January 2024 – June 2024
- Bidding: Summer 2024
- Construction: Fall 2024 - Spring 2025

PHASE 1 SCOPE MATRIX:

CONCEPTUAL DESIGN PHASE SERVICES				Architect	Civil Engineer	Electrical Engineer
Kickoff Meeting with Owner				1	0	0
Other Meetings				1	0	0
Site Visits				1	1	1
DESIGN PHASE SERVICES (35%, 65% and 100% Documents)				Architect	Civil Engineer	Electrical Engineer
Develop a design solution based upon the approved project requirements				Yes	Yes	Yes
Meetings with Owner to review the design solution options and the Preliminary Project Budget						
Phase:	35%	Yes	Cheyenne	Yes	No	No

Phase:	65%	Yes	Cheyenne	Yes	Yes	No
Phase:	95%	Yes	Cheyenne	Yes	No	No
Synthesize the aspects of the design solution options preferred by the Owner to develop a final solution				Yes	Yes	Yes
Upon the Owner's approval of the design solution, prepare Construction Documents indicating requirements for construction of the project, anticipated to include:						
Drawings:						
		Yes		Yes	Yes	Yes
		Yes		Yes	Yes	Yes
Written Bidding Requirements				No	No	No
Technical specifications for materials, systems, etc.				Yes	Review	Yes
Meetings with Owner (Maximum)				2	1	0
Other Meetings				1	0	0
Site Visits				2	0	1
BIDDING/NEGOTIATION PHASE SERVICES				Architect	Civil Engineer	Electrical Engineer
Assist the Owner in obtaining proposals and award of the Contract for Construction				Yes	NA	NA
Distribution of Bid Documents will be via:	CDQuest.com ?	NA		NA	NA	NA
	Architect?	NA		NA	NA	NA
	Owner?	Yes		NA	NA	NA
Coordination of bidding, including:						
Answering Bidders questions				Yes	Yes	Yes
Processing Bidder's Request for Interpretation of Documents and Requests for Product Substitutions				Yes	Yes	Yes
Preparation of Addenda, if required				Yes	Assist	Assist
Attend Pre-Bid Meeting	Location:	Cheyenne		1	0	0
Prepare Bid Tabulation Form?				NA	NA	NA
Attend Bid Opening	Location:	Cheyenne		1	NA	NA
Evaluation of bids and recommendation to Owner regarding award of bid				Yes	Assist	Assist
Prepare Notice of Intent to Award Contract?				NA	NA	NA
Prepare Owner/Contractor Agreement?				NA	NA	NA
Review Contractor's Post Bid Submittals?				NA	NA	NA
Meetings with Owner				1	0	0
Other Meetings				0	0	0
Site Visits				0	0	0

CONSTRUCTION ADMINISTRATION (CA) PHASE			Architect	Civil Engineer	Electrical Engineer
Maximum Length of Construction:			15 weeks		
Attend Pre-Construction Conference	Location:	Cheyenne	1	1	0
Owner/Architect/Contractor (OAC) Meetings	Frequency:	Every 2 Weeks	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits
Periodic site visits over the construction phase (generally with OAC)			8 max over 15 weeks	3 max.	2 max.
Preparation of Field Report with photographs or other documentation as appropriate for each site visit			Yes	Yes	Yes
Review of contractor's submittals			Yes	Yes	Yes
Respond to Requests for Information (RFI's) from the contractor			Yes	Yes	Yes
Substantial Completion Inspections			1 max	1 max	1 max
Preparation of Punch List			1 max	1 max	1 max
Final Completion Inspections			1 max	1 max	1 max
Meetings with Owner			1	0	0
Other Meetings			0	0	0
Presentations			0	0	0
POST CONSTRUCTION PHASE			Architect	Civil Engineer	Electrical Engineer
Integration of Contractor Provided Record Drawing Information into CAD Drawings			Yes	Yes	Yes
Intermediate Warranty Inspections					
6 th Month Inspections			0	NA	NA
11 th Month Inspections			1	NA	NA
Meetings with Owner			1	0	0
Other Meetings			0	0	0
Additional Site Visits			0	0	0

Phase 2 Scope:

- A. Repair of electrical in floor train map display located in Depot Lobby:
 - i. Design Scope to include: Exploration of how in floor display is powered, location of components (transformers, relays, etc.) and probable repair. Diagnostics by electrical contractor is likely required, and it is anticipated that total repair scope will not be known until work occurs.
 - i) Recommend line item on bid form for number of hours and cost from electrical contractor.
 - ii. Anticipated Professional Services Scope: Architect, Electrical Engineer.
- B. Security cameras for high traffic areas on first floor, and replacement of selected exterior door locks with keypads/access control.
 - i. Design scope to include: Security camera layout with pathway layout for high traffic areas. Anticipated to be ± 10 camera locations total. Locations will be dependent on access to pathways and maintaining historic fabric of building. Exterior door access control added at West exterior door location, adjacent to parking lot.
 - ii. Anticipated Professional Services Scope: Architect, Electrical Engineer, Door Hardware Consultant.
- C. Update restrooms on first floor, located between lobby and Accomplice Brewing. Scope to include replacement of restroom fixtures (waterclosets, urinals, lavatories, countertops, and accessories), new paint, and verification of ADA fixture compliance.
 - i. Design scope to include: Assumes one for one (direct) replacement of fixtures. Assumes no major changes in layout or configuration (pending field verification).
 - (1) Note: Assumes temporary toilet facility to be needed to serve patrons during construction.
 - ii. Anticipated Professional Services Scope: Architectural, Mechanical Engineer, Electrical Engineer.
- D. Remodel existing kitchen area on first floor (located off of lobby).
 - i. Design scope to include: Design and layout for 'warming kitchen' coffee shop area. Reuse existing plumbing in general area. Grease trap is likely required by BOPU & Health Department depending on use of kitchen and food products utilized. Grease trap may be able to be located in basement, with exterior access for pumping. Final location and requirement to be determined.
 - ii. Anticipated Professional Services Scope: Architect, Mechanical Engineer, Electrical Engineer, Kitchen Consultant.

Phase 2 anticipated Schedule :

- i. Design: January 2024 – June 2024
- ii. Bidding: Summer 2024
- iii. Construction: Fall 2024 - Spring 2025
 - a. It is anticipated that submittals and material procurement by contractor to occur prior to start of construction to minimize on site construction duration (pending general contractors input).

SCOPE OF SERVICES: PHASE 2

CONCEPTUAL DESIGN PHASE SERVICES				Architect	Kitchen Consultant	Mechanical Engineer	Electrical Engineer
Kickoff Meeting with Owner				1	0	0	0
Other Meetings				1	0	0	0
Site Visits				1	0	1	1
DESIGN PHASE SERVICES (35%, 65% and 100% Documents)				Architect	Kitchen Consultant	Mechanical Engineer	Electrical Engineer
Develop a design solution based upon the approved project requirements				Yes	Yes	Yes	Yes
Meetings with Owner to review the design solution options and the Preliminary Project Budget							
Phase:	35%	Yes	Cheyenne	Yes	No	No	No
Phase:	65%	Yes	Cheyenne	Yes	Yes (Virtual)	Yes	No
Phase:	95%	Yes	Cheyenne	Yes	No	No	No
Synthesize the aspects of the design solution options preferred by the Owner to develop a final solution				Yes	Yes	Yes	Yes
Upon the Owner's approval of the design solution, prepare Construction Documents indicating requirements for construction of the project, anticipated to include:							
Drawings:							
		Yes		Yes	Yes	Yes	Yes
		Yes		Yes	Yes	Yes	Yes
Written Bidding Requirements				NA	NA	NA	NA
Technical specifications for materials, systems, etc.				Yes	Yes	Yes	Yes
Meetings with Owner				2	1	1	0
Other Meetings				1	0	0	0
Site Visits				2	0	1	1
BIDDING/NEGOTIATION PHASE SERVICES				Architect	Kitchen Consultant	Mechanical Engineer	Electrical Engineer
Assist the Owner in obtaining proposals and award of the Contract for Construction				Yes	NA	NA	NA
CDQuest.com ?				NA	NA	NA	NA

Distribution of Bid Documents will be via:	Architect?	NA	NA	NA	NA	NA
	Owner?	Yes	NA	NA	NA	NA
Coordination of bidding, including:						
	Answering Bidders questions		Yes	Yes	Yes	Yes
	Processing Bidder's Request for Interpretation of Documents and Requests for Product Substitutions		Yes	Yes	Yes	Yes
	Preparation of Addenda, if required		Yes	Assist	Assist	Assist
Attend Pre-Bid Meeting	Location:	Cheyenne	1	0	0	0
Prepare Bid Tabulation Form?			NA	NA	NA	NA
Attend Bid Opening	Location:	Cheyenne	1	NA	NA	NA
Evaluation of bids and recommendation to Owner regarding award of bid			Yes	Assist	Assist	Assist
Prepare Notice of Intent to Award Contract?			NA	NA	NA	NA
Prepare Owner/Contractor Agreement?			NA	NA	NA	NA
Review Contractor's Post Bid Submittals?			NA	NA	NA	NA
Meetings with Owner			1	0	0	0
Other Meetings			0	0	0	0
Site Visits			0	0	0	0
CONSTRUCTION ADMINISTRATION (CA) PHASE			Architect	Kitchen Consultant	Mechanical Engineer	Electrical Engineer
Maximum Length of Construction:			20 weeks			
Attend Pre-Construction Conference	Location:	Cheyenne	1	0	0	0
Owner/Architect/Contractor (OAC) Meetings	Frequency:	Every 2 Weeks	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits
Periodic site visits over the construction phase (generally with OAC)			10 max over 20 weeks	0	1 max	1 max
Preparation of Field Report with photographs or other documentation as appropriate for each site visit			Yes	Yes	Yes	Yes
Review of contractor's submittals			Yes	Yes	Yes	Yes
Respond to Requests for Information (RFI's) from the contractor			Yes	Yes	Yes	Yes
Substantial Completion Inspections			1 max	1 max	1 max	1 max
Preparation of Punch List			1 max	1 max	1 max	1 max
Final Completion Inspections			1 max	1 max	1 max	1 max
Meetings with Owner			1	0	0	0
Other Meetings			0	0	0	0
Presentations			0	0	0	0

POST CONSTRUCTION PHASE	Architect	Kitchen Consultant	Mechanical Engineer	Electrical Engineer
Integration of Contractor Provided Record Drawing Information into CAD Drawings	Yes	No	Yes	Yes
Intermediate Warranty Inspections				
6 th Month Inspections	NA	NA	NA	NA
11 th Month Inspections	1	0	0	0
Meetings with Owner	1	0	0	0
Other Meetings	0	0	0	0
Additional Site Visits	0	0	0	0

SCOPE OF SERVICES

The general description of the Scope of Services for this project is as follows:

- Architectural services for:
 - Site:
 - Cheyenne Depot Museum
 - Total Area: Existing building area to remain.
 - Height of Buildings: Existing structure to remain.
 - Number of buildings: Existing to remain.
 - Planning and Zoning Approvals:
 - Site Plan Review: Not included or anticipated.
 - Engineering Plan Review: Not included or anticipated.
 - Surveying:
 - Included for Exterior Improvements on Southwest side of Building
 - Civil Design:
 - Included for Exterior Improvements on Southwest side of Building
 - Drainage Study:
 - Not Included or anticipated.
 - Traffic Study:
 - Not Applicable.
 - Structural System:
 - Existing structure to remain.
 - HVAC:
 - Existing HVAC system to remain.
 - Plumbing:
 - Plumbing layout is anticipated to remain. Review of fixture heights, and ADA requirements will be evaluated as part of the project. If fixture's locations are required to change, design will accommodate.
 - Fire Sprinkler System:
 - Existing Fire Suppression to remain. No changes are anticipated.
 - Electrical:
 - Electrical scope is as noted in phased descriptions.
 - Acoustical Design:
 - Not Included
 - Mechanical Noise & Vibration Control – Not Included
 - Anticipated Schedule:
 - Refer to Phases for anticipated schedule

- Estimated Construction Cost:
 - Phase 1: ± \$500,000
 - Phase 2: ± \$450,000
 - *It is recognized that neither the Architect nor the Owner has control over the cost of labor, materials, or equipment, over the Contractor's or Subcontractor's methods of determining bid prices, or over competitive bidding, market or negotiating conditions. Accordingly, the Architect cannot and does not warrant or represent that bids or negotiated prices will not vary from any Estimates of Probable Construction or Renovation Cost or any evaluation prepared by the Architect.*
- Project Delivery: Design-Bid-Build.
 - Depending on final schedule and coordination with the Depot, the project is anticipated be released as a single bid package, for award to one General Contractor, and bidding and construction shall immediately follow completion of construction documents.
 - Total length of construction phase services total is a maximum of 35 weeks from selected Contractor's Notice To Proceed date.

PROFESSIONAL SERVICES FEES

- For this project we propose to provide the Architectural services described herein, based upon the noted scope included with each phase.

FEES FOR PHASE 1:

• 35% Documents Phase (Schematic Design (SD) Phase).....	\$13,087
• 65% Documents Phase (Design Development (DD) Phase)	\$15,467
• 100% Documents Phase (Construction Documents (CD) Phase)	\$21,415
• Bidding/Negotiation (BN) Phase.....	\$2,379
• Construction Administration (CA) Phase.....	\$7,138
• Post Construction (PC) Phase.....	\$0
• TOTAL.....	\$59,486

FEES FOR PHASE 2:

• 35% Documents Phase (Schematic Design (SD) Phase).....	\$13,848
• 65% Documents Phase (Design Development (DD) Phase)	\$16,366
• 100% Documents Phase (Construction Documents (CD) Phase)	\$22,661
• Bidding/Negotiation (BN) Phase.....	\$2,518
• Construction Administration (CA) Phase.....	\$7,554
• Post Construction (PC) Phase.....	\$0
• TOTAL.....	\$62,947

• **TOTAL PHASE 1 & PHASE 2 FEES: \$122,433**

Plus Reimbursable Expenses

TDSi RATE SCHEDULE

- TDSi Hourly Rates are as follows:

Staff Member	Rate Per Hour
○ Randy Byers, AIA, LEED AP ^{BD+C} – TDSi Principal, Architect.....	\$ 200
○ Clint Taylor, AIA, PE, LEED AP ^{BD+C} - TDSi Associate, Architect.....	\$ 150
○ Amber Conwell, AIA - TDSi Associate, Architect.....	\$ 140
○ Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect.....	\$ 130
○ Legal testimony will be invoiced at 2 times the above noted hourly rate; Research and consultation as an Expert Witness, and time giving depositions will be billed at 1.5 times the above noted hourly rate.	

ADDITIONAL SERVICES

- Additional Services will be invoiced at the Hourly Rates current at the time the services are provided.
- Additional Services will be invoiced at the Hourly Rates current at the time the services are provided. If the professional services covered by this proposal have not been completed within the stated duration noted, through no fault of the Architect, additional services shall apply. Architect shall give written notice to the owner if additional services are anticipated, prior to additional services occurring.

CONSULTANT SERVICES

- Consultant fees not included within basic scope of services, and reimbursable expenses will be billed at cost plus 10% markup.

REIMBURSABLE EXPENSES

- Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.
- Examples of such expenses are:
 - out of town travel and subsistence expenses;
 - reproduction costs for documents for other than the Architect's use or record;
 - postage and shipping charges.

*Hourly Rates and Reimbursable Expenses Rates are subject to review
and change on a periodic basis, or as circumstances require.*

BILLING SCHEDULE

- E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

PRODUCTS OF SERVICE

- In general, the anticipated Products of Service include the following:

FOR SCOPE OF SERVICES

- At Completion of 35% Documents Phase (Schematic Design Phase):
 - Drawings
- At Completion of 65% Documents Phase (Design Development Phase):
 - Drawings
 - Technical Specifications
- At Completion of 100% Documents Phase (Construction Documents Phase):
 - Drawings
 - Technical Specifications
- Construction Administration Phase:
 - Architect's Field Reports
- Post Construction (Warranty Period) Phase:
 - Record Drawings
 - 11th Month Inspection Report

SERVICES NOT INCLUDED

- The Architect's fees do not include the following:
 - Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
 - Surveying, except as noted above
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Testing or Abatement Design for Hazardous Materials
 - Consultant other than those specifically listed above
 - Special Consultants
 - Furniture Fixtures & Equipment Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies, except as noted above.
 - Manual Distribution of Bid Documents
 - Plan Review Fees
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
 - Models
 - Post Construction Services, except as noted herein
 - Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted herein
 - Utility water, sewer, or natural gas piping further than 5 feet outside the building including landscape irrigation.
 - Ground source heat pump system design including loop field design.
 - Fire sprinkler design
 - Energy modeling

- Life cycle cost analysis of multiple mechanical systems
- LEED Documentation
- Detailed Quantity Take-off Construction cost estimates
- Commissioning of the mechanical systems
- Ground Vibration Testing and Recommendations
- Testing and analysis of ground borne environmental vibrations
- Exterior Sound Isolation Design
- Detailed Analysis of Environmental Noise (Cadna Model)
- Security Design
- Travel outside Cheyenne, Wyoming
- Professional Liability Coverage beyond limits noted below

The services noted above may be requested by the Owner as Additional Services.

INSURANCE

- Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a “claims-made” policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

TDSi HISTORY AND NOTED PROJECT EXPERIENCE:

TDSi is a local Cheyenne architectural firm, with a 23-year history of professional design services that integrates quality architecture, sustainable design, and a high level of client service. Our portfolio includes recreation, K-12, higher education, mixed-use developments, large new commercial construction projects, renovation projects, master planning and historic restoration work.

A FEW THINGS SET OUR DESIGN TEAM APART:

LOCATION | we believe it is important for the Design Team to be proximate to the project site to be able to respond to the Owner's and User's needs throughout the project - it will be essential that the Architect and consultants be accessible and be on-site on a regular basis – from the inception of the design phase through the completion of the project and the warranty phase - TDSi and the majority of our consultants are local and able to visit the project site easily;

FAMILIARITY WITH PROJECT | TDSi and our Design Team's previous experience and involvement with similar projects like this project will be a considerable advantage as the project moves forward.

EXPERIENCE | one of our Design Team's strengths is our experience - TDSi's experience, now spanning 23 years of diverse project types, is supplemented with similar experience from the consultants on our Design Team. Our experience includes numerous projects similar to the proposed various projects at the Historic Cheyenne Depot;

FAMILIARITY WITH CITY REQUIREMENTS | Our Design Team works with City of Cheyenne Requirements on a regular – including City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, current building code requirements etc. Members of our Design Team have been involved with building code adoption committees, UDC development committees and Building Code Board of Appeals, and the Historic Preservation Board of Cheyenne.

CREATIVITY | TDSi has a proven record of creative and skilled problem solving; providing Owner's with unique solutions founded on creative responses to program needs, project constraints and identified opportunities. As important as our Team's experience and capabilities are, we know that they are no more important than how well we listen to the Owner's and User's needs. Only by being attentive listeners can we learn and understand your objectives, and help you optimize the opportunities for success. The final product must ultimately reflect and support the Community Recreation and Events Department mission, vision, character, and commitment to quality. Our Design Team is committed to being part of that success. Thank you for your consideration of our Design Team for this project. We look forward to the next steps in your selection process.

- TDSi noted Historic Architectural Project Experience:
 - First Presbyterian Church Renovation and Addition
 - Dinneen Building Addition and Renovation
 - St. Mary's Cathedral Renovation
 - Nagle Warren Mansion Renovation
 - First United Methodist Church Addition and Renovation
 - Elk Mountain Hotel Renovation
 - Elk Mountain, Wyoming
 - University of Wyoming Historic Preservation Plan

TERM OF PROPOSAL

✚ This proposal will be valid until February 28, 2024.

Submitted By:



Will Byers, Associate AIA
TDSi Associate
for the firm